

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ADAM MAYSONET,

Plaintiff,

-against-

THE CITY OF NEW YORK,
P.O. KELVYN VALDOVINOS (965585),
P.O. ALEXIS PONCE (944284),

Defendants.
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Index No.: 159093-2020
Date Filed:

AMENDED COMPLAINT

Jury Trial Demand

Venue: NEW YORK COUNTY

The plaintiff, **ADAM MAYSONET** by his attorney, **ROBERT BLOSSNER, ESQ.**, complaining of the defendants respectfully alleges, upon information and belief, as follows:

1. Plaintiff **ADAM MAYSONET** is a resident of the New York, County of New York, and State of New York.
2. Defendant ***CITY OF NEW YORK ("CITY")*** is a municipal corporation who oversees the NYPD.
3. Defendants KELVYN VALDOVINOS and ALEXIS PONCE (individual Defendants or NYPD officers) are/were NYPD officers at the time of the incident assigned to the 7th precinct.
4. On June 6, 2019, plaintiff was visiting a friend at the Smith Houses, 180 South Street, 13th floor, NY, NY.
5. At that point individual defendants approached plaintiff and inquired why

he was at the premises.

6. Plaintiff responded that he was visiting a friend and pointed the officers to the apartment that he was visiting.

7. The friend inside the apartment confirmed to the NYPD officers that plaintiff was her guest and lawfully inside the building.

8. The NYPD defendants arrested him anyway.

9. Defendants took him to the precinct and released him approximately 12 hours later.

10. Plaintiff fought the charges against him and they were dismissed in his favor.

CONDITIONS PRECEDENT

11. Plaintiff has complied with the notice of claims requirement by duly serving a notice of claim, appearing for a 50-h hearing and commencing this action within one year and ninety days from the date of the incident. The **CITY** has failed to or otherwise ignored to settle or adjust these claims. The time to file this complaint has been tolled by the NYS Governor.

AS AND FOR A FIRST CAUSE OF ACTION

(False Arrest/Seizure under 42 U.S.C. 1983)

12. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

13. Defendants arrested plaintiff on false charges. Plaintiff was therefore unlawfully seized and held in police custody.

14. As a result of defendants' conduct plaintiff suffered constitutional injuries.

AS AND FOR A SECOND CAUSE OF ACTION

(Malicious Prosecution/Denial of Fair Trial under 42 U.S.C. 1983)

15. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

16. Defendants falsified police documents and initiated criminal proceedings against the plaintiff.

17. Defendants knew that by forwarding the police documents to the DA's office, plaintiff would be prosecuted. They acted with malice because they did not have probable cause to even arrest plaintiff. They also falsified documents claiming plaintiff had committed a crime.

18. As a result of defendants' conduct plaintiff suffered constitutional injuries.

AS AND FOR A THIRD CAUSE OF ACTION

(Municipal Liability against the CITY)

19. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

20. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

21. The aforementioned customs, usages, and practices of the **CITY** included, but were not limited to, arresting, assaulting individuals suspected of crimes without due process. In addition, the **CITY** engaged in a custom or practice of inadequate screening,

hiring, retaining, training, disciplining and supervising its employees, which was the moving force behind the violation of Plaintiff's rights as described herein.

22. In addition, the Defendant's superior officers whose duty it was to review and screen all arrests for propriety upon presentation by the officer seeking to make an arrest routinely ratified such arrests without questioning the facts underlying same.

23. Furthermore, the individual defendants have a practice and custom of ignoring the mandates of the patrol guide, which requires them to prepare several forms before, and after an arrest is made. As a result of the failure of the **CITY** to properly recruit, screen, train, discipline, and supervise its officers, including the individual Defendants, Defendants have tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein

24. Furthermore, police officers from the NYPD retain old photographs of arrestees and use them illegally to show victims of crime, in order to close out cases even when the photographs do not represent the actual perpetrator of the crime. These photographs and other documents are supposed to be sealed pursuant to Section 160.50 of the NYS penal Code. Yet, on numerous occasions, the NYPD officers retain them and use them for unlawful purposes. The NYPD has not mechanism set to train officers on how to destroy files, photographs and criminal court and arrest paperwork after a case has been dismissed and sealed. This lack of inaction is a *defacto* policy that led to violation of plaintiff's constitutional rights.

AS AND FOR A FOURTH CAUSE OF ACTION

(Unlawful imprisonment)

25. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set

forth herein.

26. Defendants confined plaintiff.

27. Plaintiff was aware of his confinement and did not consent to the confinement which confinement was neither privileged nor lawful.

28. As a result of defendants' conduct plaintiff suffered injuries.

AS AND FOR A FOURTH CAUSE OF ACTION

(Assault and Battery)

29. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

30. The Defendants committed acts that caused harm to plaintiff.

31. The Defendants intended to inflict injury or pain on plaintiff.

32. As a reason of the assault by the Defendants plaintiff was apprehensive and suffered physical and emotional injuries.

AS AND FOR A FIFTH CAUSE OF ACTION

(Harassment)

33. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

34. The Defendants intended to harass, annoy or alarm plaintiff.

35. These defendants acted in a way that caused plaintiff to be harassed, annoyed and alarmed.

36. As a result of their conduct, plaintiff suffered and continues to suffer mental and physical injuries.

AS AND FOR A SIXTH CAUSE OF ACTION

(Intentional and Negligent Infliction of Emotional Distress under the laws of New York)

37. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

38. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

39. The aforementioned conduct was committed by Defendants while acting within the scope of their employment by Defendant City.

40. The aforementioned conduct was committed by Defendants while acting in furtherance of their employment by Defendant City.

41. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to Plaintiff.

42. As a result of the aforementioned conduct, Plaintiff suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

AS AND FOR A SEVENTH CAUSE OF ACTION

(Violation of NYS and NYC Human and Civil Rights Law)

43. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

44. DOE Defendants conduct herein denied plaintiff the equal protection of the law discriminated against him and caused him injuries.

45. As a result, plaintiff's rights protected by the New York State and New York City Human Rights Laws were violated.

AS AND FOR AN EIGHTH CAUSE OF ACTION

(Negligent Screening, Training, Hiring, and Retention under the laws of the State of New York)

46. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

47. Defendant City owed a duty to individuals like plaintiff to properly screen, train, hire and then appropriately discipline its employees.

48. Defendant City breached its duty and failed to use reasonable care in the screening, hiring, retraining and retention of the aforesaid individual DOE Defendants who conducted and participated in the violation of Plaintiff's rights.

49. As a result, plaintiff suffered injuries.

AS AND FOR A NINETH CAUSE OF ACTION

(Negligence under the laws of the State of New York)

50. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

51. Defendant City owed a duty to individuals like plaintiff.

52. Defendant City breached its duty when individual DOE Defendants engaged in and participated in the violation of Plaintiff's rights.

53. As a result, plaintiff suffered injuries.

54. Plaintiff's physical and emotional injuries herein were caused by the carelessness, recklessness and negligence of the Defendant and their employees and agents, who were on duty and acting in the scope of their employment engaging in the wrongful conduct described herein.

AS AND FOR A TENTH CAUSE OF ACTION

(*Respondeat Superior* liability under the laws of the State of New York)

55. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

56. Defendant City is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein that caused plaintiff's irreparable physical and emotional injuries.

WHEREFORE, Plaintiffs demand judgment and pray for the following relief, jointly and severally, against the defendants:

(A) Full and fair compensatory damages in an amount One Hundred Thousand Dollars for each and every cause of action for each plaintiff against defendants (individually or collectively) or as determined by a jury:

(B) Punitive damages in an amount to be determined by a jury:

(C) Reasonable attorney's fees and the costs, expenses and disbursements of the action; and

(D) Such other and further relief as appears just and proper.

Dated: New York, New York
June 13, 2022

Respectfully,



ROBERT BLOSSNER, ESQ.